

STAFF REPORT

Plains Industrial Park **Summation**

Zone District Map Amendment Process

CASE NUMBER: UDC-13-00034

FILE CODE: PIPS-Z

PREPARED BY: Jim Flesher

MEETING DATES: **Planning Commission:** March 4, 2013
City Council: March 11, 2013

Required documents submission:

All required documents have been submitted and reviewed by staff.

- Complete Application
- Applicant Zone Change Map

RECOMMENDATION: The Planning and Development Office recommends approval of the zone change from A-2, County Agricultural, to HI, Heavy Industrial, and AG, Agricultural, pursuant to criteria outlined in Section 2.2.1.d of the Cheyenne UDC.

STAFF UPDATE (3/5/13): At its regular meeting Monday, March 4, 2013, the Cheyenne Planning Commission voted unanimously to recommend approval of the above described zone change, with Commissioner Lindsay Woznick abstaining.

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Zone District Map Amendment Process

CASE NUMBER: UDC-13-00034 **FILE CODE:** PIPS-Z

PREPARED BY: Jim Flesher

SUBMITTAL DATE: January 28, 2013

MEETING DATES: **Planning Commission:** March 4, 2013
City Council: March 11, 2013

OWNER: B and L Land Co LLC (307) 732-0600
% Paul Lowham, manager
PO Box 14760
Jackson, WY 83002

AGENT: Brad Emmons (307) 637-6017
% AVI, p.c.
1103 Old Town Lane, Suite 101
Cheyenne, WY 82009

PROJECT: Plains Industrial Park

WORK DESCRIPTION: Zone Change from A-2 to HI and AG

LOCATION:

1) Legal Description: A portion of HR Ranch Road right-of-way within GDC Subdivision and portions of Section 6, T.13N., R.65W.; Section 1, T.13N., R.66W.; Section 31, T.14N., R.65W.; and Section 36, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming

2) General Location: Located south of I-80, west of Campstool Road

3) Address: Vacant land

SIZE: 128.73 acres

CURRENT ZONING: A-2, County Agriculture

PROPOSED ZONING: HI, Heavy Industrial, and AG, Agricultural

EXISTING LAND USE: Vacant land

PROPOSED LAND USE: Aboveground petroleum receiving & sending facility

SURROUNDING LAND USES:

DIRECTION	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Interstate, Cheyenne Business Parkway	CB, LI, HI	City
South	Wastewater treatment plant	HI	City
East	Wyoming Hereford Ranch	A-2	County
West	Proposed power plant	HI	City

SUMMARY:

Plains All American Pipeline proposes to develop an aboveground petroleum receiving and sending facility on a portion of the subject property. The current owner, B and L Land Company, has requested a zone change from A-2, County Agriculture, to HI, Heavy Industrial, and AG, Agricultural, concurrently with an expedited plat, in order for the development to occur. The area is designated Industrial and Mixed-Use Employment Campus on the PlanCheyenne Future Land Use Plan map and the proposed zone change appears to comply with criteria outlined in Section 2.2.1.d of the Cheyenne Unified Development Code. Therefore staff recommends approval of the zone change. At its regular meeting Monday, March 4, 2013, the Cheyenne Planning Commission recommended approval of the zone change.

ZONE CHANGE DATA:

The 40-acre Lot 3, Block 2, is proposed for Heavy Industrial zoning and would contain crude oil tanks similar to the Suncor pipeline station adjacent to Interstate 80 and Holly Frontier Cheyenne Refinery. The property will be an aboveground petroleum receiving and sending facility owned and managed by Plains All American Pipeline, LP, a Houston-based Fortune 100 company. The remainder of the property is proposed for Agricultural zoning, which also serves as an interim or “holding” zoning until such time as development plans are further refined. The lots proposed for AG zoning would need to be rezoned again prior to their development. The zoning amendment ordinance would take effect only upon recording of the associated Plains Industrial Park plat.

Industrial uses are further categorized in the UDC for purposes of determining allowed uses as follows:

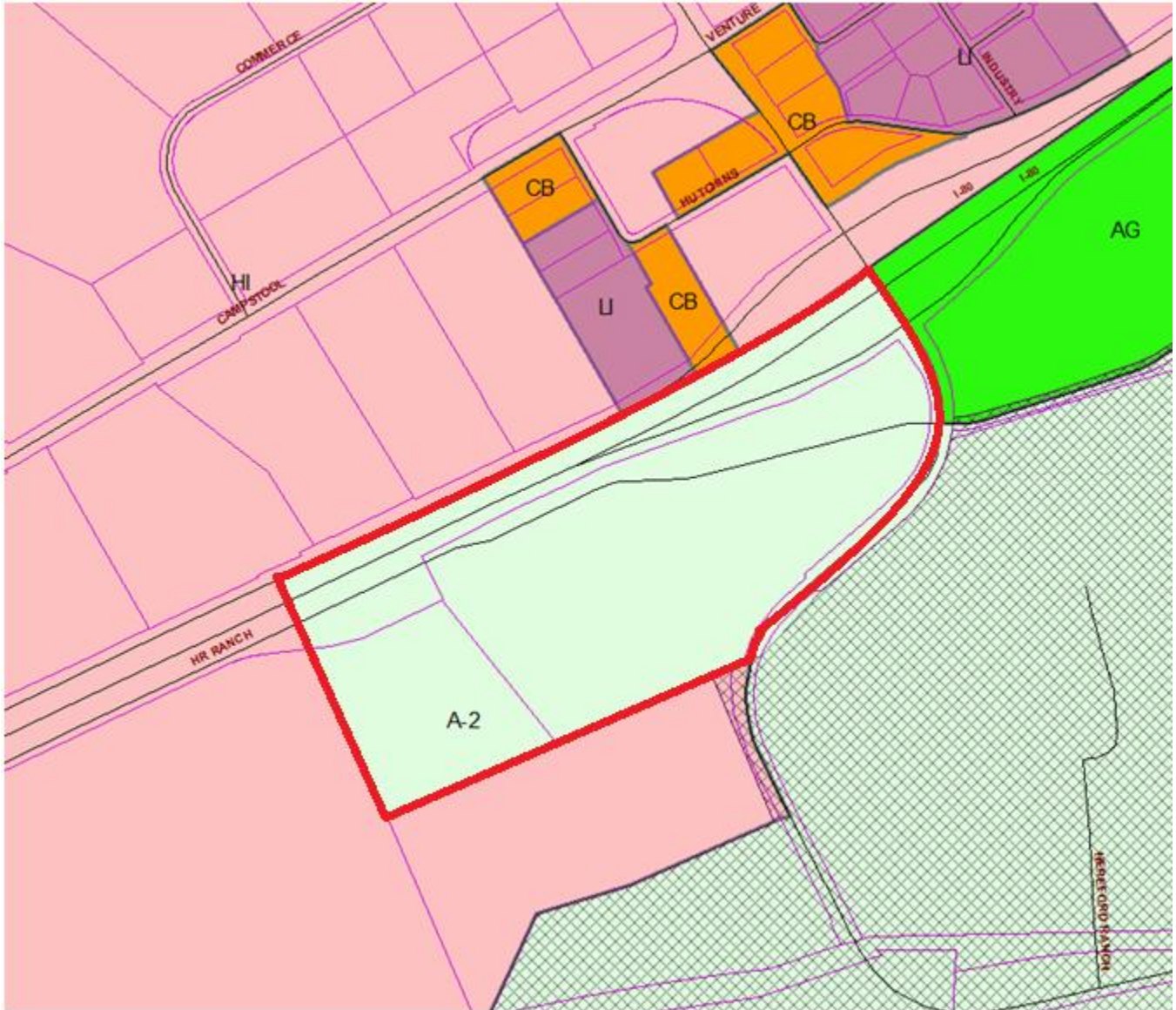
Limited Industrial. An Industrial use where small-scale activities produce no byproducts such as smoke, odor, dust or noise discernible from the outside of the building in which it is located. Individual facilities typically occupy less than 10,000 square feet of gross leasable area and distribution and deliveries are commonly made by general consumer delivery services, requiring no significant truck access. A retail, showroom, or service component is often associated with the use. Examples include artist studios, metal and wood shops, arts and crafts manufacturing, small appliance or machine repairs, or other small-scale assembly of finished parts or products from previously prepared materials. [Permitted use in HI.]

Moderate Industrial. An Industrial use where byproducts such as smoke, odor, dust or noise are not discernible from outside of the building in which it is located. Distribution and deliveries can occur from general consumer delivery services or limited commercial truck access. Examples include research labs or facilities, small electronics or computer assembly and manufacturing, furniture assembly. [Permitted use in HI.]

General Industrial. An Industrial use where byproducts such as smoke, odor, dust or noise are not discernible from beyond the property boundary. Operations may require substantial commercial vehicle access for distribution and deliveries. Examples include large-scale non-animal food processing, commercial warehouses or wholesale distribution centers or energy industry services. [Permitted use in HI.]

Industrial. An Industrial use capable of producing significant byproducts discernible from outside the building and property including noise, odors, or other potentially offensive materials. Operations may require substantial commercial vehicle access for distribution and deliveries. Examples include food-processing involving animals, metal or chemical manufacturing, impoundment yards. [Conditional use in HI.]

Permitted uses in the HI district include, but are not limited to, Storage Yards, Office Buildings, Automotive Repair, and Recycling Services, in addition to Limited, Moderate, and General Industrial uses. The use category “Industrial” is a conditional use requiring Board of Adjustment approval, as are Salvage Yards, Junk Yards, and Outdoor Sales.



ZONE CHANGE ANALYSIS:

Zoning map amendments are reviewed in accordance with the criteria listed in 2.2.1.d of the UDC:

1 || Policies & Physical Patterns of PlanCheyenne - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

Generally the proposal appears to be consistent with PlanCheyenne. The property is within the Urban Service Boundary, though it is located at the edge of the boundary. One of the Key Concepts of PlanCheyenne is that urban-scale development should be located within this Urban Service Boundary. Beyond this boundary PlanCheyenne promotes agricultural and ranchland uses and conservation of cropland. In this area land uses transition from industrial into farmland and ranchland. (Please see Principle 1.2 of ShapeCheyenne.)

The Future Land Use Plan map in PlanCheyenne indicates Industrial for the east side of this property where the HI zoning is proposed and Mixed-Use Employment Campus for the west side which is to remain AG until further development is proposed.

According to PlanCheyenne, the Industrial category “...encompasses the heavier and light industrial areas and generally provides a location where less restrictive regulations are applied. Outdoor storage and heavy industry may be appropriate in certain areas and will be evaluated as part of the development review process. High visibility locations require greater attention to design.” The subject property should be considered a high visibility location, though technically not a “gateway” to the City. The Archer Planning District, two miles to the east on I-80, is considered the gateway from the east.

The Mixed-Use Employment Campus category is “intended to promote a range of land uses, with primarily office and light industry designed in a business campus setting. The campus should include open space, parks and plazas, and pedestrian walkways. Retail and services are an important component to creating a functional business campus.” (ShapeCheyenne pg. 3-18) The area of the subject property designated as Mixed-Use Employment Campus is not proposed for development at this time.

2 || Neighboring Property - *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

Existing and potential future development in the vicinity include the industrial uses of the City’s wastewater plant, the new power plant, and the industrial development on the north side of I-80. Additional public streets in the subject area are unlikely to be developed. Dry Creek is an important open space feature. South of the adjacent wastewater plant is an abandoned railroad line where Greenway path is planned, and a narrow lot for a connecting trail is proposed on the current plat. Since the property is at the edge of the Urban Service Boundary, extension of services to the south is not anticipated. The property on the east side of Campstool adjacent to and south of I-80 is controlled by the owner of the subject property. That parcel, currently zoned AG in the City, is shown as Commercial Business on the Future Land Use Plan map.

3 || Development Suitability - *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.*

This property’s relatively remote location and access to the interstate contributes to its suitability for heavy industrial development. Its location near the future power plant and wastewater treatment plant make it unsuitable for residential development and it would likely be difficult to develop for commercial uses. North of the interstate is the Cheyenne Business Parkway industrial park.

The existing agricultural zoning, in place since before the property annexed in 2005, is unsuitable for development. As mentioned previously, the lots proposed for AG zoning will need to be rezoned prior to development.

The HI zoning is less compatible with the Wyoming Hereford Ranch property, farther up Campstool Road and beyond the Urban Service Boundary. This historic 2,952-acre ranch dates back to the 1880s when it was headquarters for the then-60,000-acre ranch. It is currently listed for sale for \$10.3 million and has been owned by Sloan and Anna Marie Hales since 1978. However, in addition to cattle operations, the property contains a rock and gravel quarry and oil and gas extraction operations. It is zoned A-2 in the County, which allows, with Board approval, commercial feedlots and animal processing plants – uses not permitted within the agricultural zone districts of the City. In the City, animal processing plants are only allowed within the HI district and only with conditional use approval.

In one sense, industrial development may help preserve the historic ranch. If the subject area were developing with residential uses, this might put more pressure on the Wyoming Hereford Ranch to subdivide and develop residentially.

4 || Subdivision Standards - *The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.*

The zone change application was submitted concurrently with the plat and the proposal appears to be able to be developed according to the applicable standards in Article 4.

5 || Intent and Applicability - *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

The HI zone district is intended for “uses of very high intensity which should be isolated and buffered in order to protect the community and to ensure unimpeded operation of the use. These uses do not fit into other general business or mixed-use areas due to the nature or intensity of operations. The uses and building and site designs associated with uses in this district can produce impacts beyond the property lines, and the district should be remote from other differing and incompatible land uses.” (UDC §5.5.2)

The area meets the applicability requirements of the UDC for the HI district, which is for “larger land areas that are remote from other differing or incompatible to minimize the potential for incompatible and negative impacts of uses in the district.” The area’s access to the interstate provides additional context justification for the proposed HI zoning.

6 || Future Development - *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

The HI district has no minimum lot size or height limit. Minimum setbacks are 40 feet from all property lines. Up to 90% of the lot can be covered. The HI district requires level 2 or 3 buffers between it and all other non-industrial zones. Areas zoned AG, AR, or RR are treated as if they were zoned MR-2 for the purpose of determining buffer requirements, so a level 3 buffer will be required along the 1,319-foot west property line of the HI zoned lot. Level 3 buffers require a 25-foot wide landscaped area with three trees per 50 linear feet (80 total trees) and three shrubs per ten feet (396 total shrubs). A solid fence or additional evergreen trees is required as well.

Street trees are also required along HR Ranch Road and Campstool Road, which will help to screen the property from the Interstate and from the Wyoming Hereford Ranch.

Theoretically, Lot 2, Block 2, could have a house constructed on it under the proposed AG zoning, but the 13-acre Lot 1, Block 1, between HR Ranch Road and the Interstate will need to be rezoned prior to development, as it does not meet the minimum lot size of 20 acres for the AG zone district that would be required in order to build a single-family house on the lot. Future zone change applications for these lots are expected. Lot 1, Block 2, is an unbuildable lot being dedicated by this plat.

7 || Review - *The review and recommendations of other reviewing bodies.*

There were no comments received regarding the proposed zone change.

8 || Public Health, Safety, & Welfare - *Whether the application will harm the public health, safety, or general welfare.*

Storage of flammable liquids and hazardous chemicals naturally raises concerns of health and safety. These concerns are addressed at several layers of government. For example, building permits and inspections at the local level provide some assurance that minimum safety precautions are followed. (The City/County Environmental Health Department deals mainly with septic tank issues.) At the state level, the Department of Environmental Quality (DEQ) implements a storage program, but it does not pertain to aboveground storage tanks that are not used for dispensing fuels for public use. However, if

there were an oil spill, the Water Quality Division at DEQ would be involved. In addition, the federal Environmental Protection Agency (EPA) enforces the Clean Water Act and other federal legislation applicable to petroleum distribution.

REVIEWING AGENCIES AND REVIEWER'S COMMENTS:

No comments received regarding zoning.

Reviewing Agencies with No Comment: Building, City Attorney, Development, Engineering, Traffic Engineering, GIS, Fire, MPO, Parks and Recreation.

Reviewing Agencies Not Responding: None.

Other Comments Received: None.

Encl: Aerial Photo Exhibit
Applicant Zone Change Map
Applicant Criteria Response

cc: Owner
File